March 3, 2024

Hon. Lewis A. Kaplan
Daniel Patrick Moyinahan United States Courthouse
500 Pearl Street
New York: NY 1007-1312

Dear Judge Kaplan,

I am writing to convey my hope that Sam Bankman-Fried will be given a sentence in the range of 70 months for his role in the collapse of FTX. From the perspective of our shared human experiences, there is no comfort in knowing that whatever financial hardships which may be faced temporarily in our life is commensurate with a desire to see a lifetime of hardship behind bars for Sam Bankman-Fried. For those who sit outside of prison walls, extending mercy, and offering another the chance to live a life worth living, after serving a reasonable sentence, is both valid and just.

My son lost approximately $130,000.00 USD in cash when the exchange went bankrupt in November 2022. I travelled to his city and spent four days consoling him. He is younger than Sam, and this amount was his savings earmarked for future business plans. He, like many others I presume, experienced shock, denial, sadness, anger and grief. As I tried to help him work through his array of emotions, I wondered how all the other clients of FTX were coping. A financial loss of this nature has a ripple effect impacting not only the client, but also family, friends and associates. The event cast a shadow on my life because I could see the impact it had on his. The reality following any major crisis is usually depression and emotional turmoil.

When faced with a challenge, it can be very hard to see anything positive. But it is our reaction to an event that will influence how the future will unfold. In the ensuing months, I observed a change in my son that was essential to his future achievements. He showed resilience, confidence, and determination to meet life's challenges head on with renewed focus and vigor. The desire to rise above what occurred affected his character in a positive way and reinforced the values of honesty and hard work. As a mom, I realized that sometimes life presents circumstances that are gifts disguised in ugly wrappings. Once he shifted his focus to a more positive outlook, important life lessons emerged which would otherwise not have been possible had this particular event not unfolded. As a result, it behooves me to think that anyone who still has even a small sample of positive things to enjoy in their life, could possibly not have even an iota of compassion toward Sam Bankman-Fried.

In January 2024, my son was contacted by an entity overseeing the disbursement of FTX client funds, and confirmed his identity and the amount which he was owed. I was very pleased by this news. The hope that customer funds will be reimbursed in some measure mitigates the severity of Sam's guilt, and it seems to me that the length of his sentence should reflect this fact. Along the vein of mitigating factors, some mention should be made of Sam's ASD and the afflictive emotions that stemmed from his ADHD and his medications. These are relevant factors in his background which likely caused him to show poor judgment, but did not likely correlate with an intention to be malicious toward his clients. If Sam truly were malicious in his intentions, it does not make sense that he would try and help failing cryptocurrency businesses in the way in which he did when such companies were facing financial ruin.

I believe that Sam Bankman-Fried should be given the opportunity to live a productive life outside of his prison sentence. To be faced with the prospect of incarceration for decades does nothing to change the facts of what happened. This would only place undue hardship on someone who has a medical diagnosis which impacted his behavior. Sam Bankman-Fried should reflect upon and process the harm his actions have caused. A sentence of six or seven years would seem adequate for this to occur.

Sincerely,

Heather Ferguson